

Prakash Chandra v. State of U.P. & Anr.

Allahabad High Court · Division Bench · 25 July 2013 · WRIT - C No. - 40122 of 2013 · **Writ dismissed; alternative Supply Code remedy; objection already pending.**

HEADNOTE

A Division Bench declined to examine on merits a writ against an assessment for alleged use of an agricultural electricity connection for commercial purpose, because a remedy under the U.P. Electricity Supply Code, 2005 was available and the consumer had already objected before the licensee. The petition was dismissed.

FACTUAL SUMMARY

Prakash Chandra challenged an assessment bill dated 3 May 2013 issued by the second respondent. The charge was that electricity from his agricultural connection was being supplied for commercial purpose, and an assessment notice had been issued. Counsel for the parties did not dispute that a remedy was available under the U.P. Electricity Supply Code, 2005. The petitioner had already filed an objection before the second respondent. The Division Bench heard counsel and perused the record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

alternative remedy against assessment

HOLDING

A writ against an assessment for alleged use of an agricultural connection for commercial purpose will not be entertained on merits where a remedy is available under the U.P. Electricity Supply Code, 2005 and the consumer has already filed an objection before the licensee; the petition is dismissed. The Court did not identify a specific clause. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A Division Bench declined to examine on merits a writ against an assessment for alleged use of an agricultural electricity connection for commercial purpose, because a remedy under the U.P. Electricity Supply Code, 2005 was available and the consumer had already objected before the licensee. The petition was dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ASSESSMENT BILL DATED 3.5.2013 AND WHETHER THE AGRICULTURAL CONNECTION WAS USED FOR COMMERCIAL PURPOSE

¶ 1